

2023 SCC OnLine All 890

In the High Court of Allahabad

(BEFORE MAHESH CHANDRA TRIPATHI AND PRASHANT KUMAR, JJ.)

Deepak Jain ... Petitioner;

*Versus*

State of U.P. and Others ... Respondent.

Writ - C No. - 24689 of 2023

Decided on September 4, 2023

Advocates who appeared in this case :

Counsel for Petitioner:- Samarth Sinha, Vijay Sinha

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi, Gaurav Tripathi, Krishna Agarawal

ORDER

1. Advocates are abstaining from judicial work. Learned Additional Chief Standing Counsel is present.

2. Petitioner claims to be a tenant and living in portion of premises bearing No. 9/317, First Floor, Moti Katra, Agra. It is further claimed that petitioner has applied for new electricity connection in the premises in his name and the application of petitioner was allotted Service No. 705146923 on 12.09.2022 and thereafter an inspection of the premises was also carried out by the respondent authorities but till date connection has not been provided and as such, the petitioner is before this Court seeking a direction in the nature of mandamus to command the respondent no. 4 to provide electricity supply/connection in the name of petitioner at the premises.

3. Admittedly, the electricity connection is sought by the petitioner being tenant. It is worth to mention that supply of electricity monopolized by U. P. Power Corporation is essential for life and it is impossible to live without electricity and the same cannot be negated. The Division Bench of this Court in Writ C No. 28295/2014 (*Seema Mansoor v. U.P. Power Corporation Ltd.*) has held that an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. It is further observed that from the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord. Thus, it is clear that the application of the petitioner can always be considered as per Clause 4.4 read with

Annexure 4.2 and Annexure 4.3 of Electricity Supply Code 2005, which provides either for consent letter of owner of the premises or in the absence thereof indemnity bond is to be furnished by the lessee/tenant or occupier of the premises.

4. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition is *disposed of* asking the respondent/competent authority to consider the application of petitioner, if not yet done, in accordance with law and take appropriate decision in four weeks period but certainly after hearing the parties having stake in the matter.

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